

Vinod Kumar Sahu v. State of Uttar Pradesh And 3 Others

Allahabad High Court · Division Bench · 20 July 2026 · Writ - C No. 25099 of 2026 · **Writ disposed; reply to provisional assessment; restoration depends on final order**

HEADNOTE

Where a domestic consumer seeks mandamus to restore supply and to furnish the inspection report under para 8.1(vi) of the U.P. Electricity Supply Code, 2005, and the licensee characterises the case as theft/unauthorised use with a provisional assessment already made, the High Court will not itself restore the connection. The consumer is directed to reply to the provisional assessment; the competent authority shall pass a final assessment, after hearing, strictly in accordance with law. Restoration depends on that order and the consumer's compliance. Production of the inspection report with the licensee's written instructions meets the 8.1(vi) prayer.

FACTUAL SUMMARY

Vinod Kumar Sahu petitioned under Article 226 for a mandamus to restore his domestic electricity connection and to furnish the inspection report under para 8.1(vi) of the U.P. Electricity Supply Code, 2005. Counsel for the Electricity Department submitted that it was a case of theft of electricity: the petitioner had been using electricity unauthorisedly and a provisional assessment had been made. Written instructions, which included the inspection report, were supplied to the petitioner's counsel.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::8.1(vi)

Restoration of supply during pending theft/UUE provisional assessment; inspection report

HOLDING

Mandamus will not restore a domestic connection while a provisional assessment for alleged theft/unauthorised use is pending. The petitioner shall reply to the provisional assessment notice within two weeks; the competent authority shall pass a final assessment order strictly in accordance with law within two months after hearing the petitioner. Restoration of supply shall depend upon that final assessment and the petitioner's compliance. The para 8.1(vi) inspection-report prayer is spent once the report is furnished with the licensee's written instructions. ¶ 4-6

FLAG The licensee called the case both 'theft of electricity' and 'using electricity unauthorisedly'. The Court did not cite EA 2003 ss. 126/135 or distinguish UUE from theft. Para 8.1(vi) appears only in the prayer for the inspection report; the Court does not interpret that sub-clause.

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PETITIONER IN FACT COMMITTED THEFT OR UNAUTHORISED USE OF ELECTRICITY

The Court recorded the licensee's allegation and left the merits to the assessing officer's final assessment. ¶ 3, 5

NOT DECIDED — ENTITLEMENT TO RESTORATION INDEPENDENT OF THE FINAL ASSESSMENT

Restoration was expressly made to depend on the final assessment order and the petitioner's compliance; no independent mandamus was granted. ¶ 6

